

1. NAT'L CREDIT ACCEPTANCE v. OWEN, ET AL., SCL20070084**Motion for Assignment Order**

On July 17, 2026, pursuant to Code of Civil Procedure sections 708.510 and 708.520, the assignee of record, Sacor Financial, Inc., (the "assignee of record") filed the instant motion to assign the rights to defendant / judgment-debtor Mike Owen's ("defendant") fees, commissions, tips, and other payments earned from Chase California Real Estate Inc. (989 Tahoe Keys Blvd., South Lake Tahoe, CA 96150) for services rendered as an independent contractor, to the extent that it is necessary to satisfy the money judgment. Additionally, the assignee of record moves to restrain defendant from assigning or otherwise disposing of the right to payment that is sought to be assigned.

Proof of service filed July 17, 2026, shows the assignee of record served the motion upon defendant via mail that same day. (Code Civ. Proc., § 708.510, subd. (b).)

Defendant filed no opposition and no claim of exemption. (See, Code Civ. Proc., § 708.550 [requiring a claim of exemption to be filed no less than three days before the hearing].) On September 8, 2026, the assignee of record filed and served upon defendant via mail a notice of non-opposition.

1. Background

This is a collections case. On June 22, 2007, judgment was entered against defendant and in favor of plaintiff National Credit Acceptance, Inc. in the amount of \$16,475.18. On December 27, 2010, the court assigned the judgment to Sacor Financial, Inc., the assignee of record. On January 30, 2017, the judgment was renewed.

The sum of \$1,303.40 has been paid on the judgment. (Jones Decl., ¶ 4.) The assignee of record declares the current balance due on the judgment is \$34,631.52, including accrued interest and post-judgment costs incurred. (Jones Decl., ¶ 4.)

Defendant is an independent contractor for Chase California Real Estate Inc. (Jones Decl., ¶ 7.) Defendant is not an employee. (Jones Decl., ¶ 6.)

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2. Discussion

Under California law, where a judgment creditor can identify a person or entity obligated to make payment to the judgment debtor, and where the right to payment is assignable, the right to payment may be assigned from the third-party obligor to the judgment creditor. (Code Civ. Proc., § 708.510, subd. (a).)

Code of Civil Procedure section 708.510 sets forth the categories of property that may be assigned. It provides that a court may assign to the judgment creditor “all or part of a right to payment due or to become due, whether or not the right is conditioned on future developments, including *but not limited to* the following types of payments: [¶] (1) Wages due from the federal government that are not subject to withholding under an earnings withholding order. [¶] (2) Rents. [¶] (3) Commissions. [¶] (4) Royalties. [¶] (5) Payments due from a patent or copyright. [¶] (6) Insurance policy loan value.” (Code Civ. Proc., § 708.510, subd. (a), italics added.) The statute provides a procedure for reaching certain forms of property that cannot be reached by levy under a writ of execution. (Code Civ. Proc., § 708.510, Legis. Comm. Cmt. (1982).)

In this case, the assignee of record argues the court should grant the assignment order because, despite extensive investigation, the assignee of record has been unable to locate any assets of defendant that are subject to attachment. (Jones Decl., ¶ 6.)

In determining whether to order an assignment or the amount of the assignment, the court may take into consideration all relevant factors, including the following: “(1) The reasonable requirements of a judgment debtor who is a natural person and of persons supported in whole or in part by the judgment debtor. [¶] (2) Payments the judgment debtor is required to make or that are deducted in satisfaction of other judgments and wage assignments, including earnings assignment orders for support. [¶] (3) The amount remaining due on the money judgment. [¶] (4) The amount being or to be received in satisfaction of the right to payment that may be assigned.” (Code Civ. Proc., § 708.510, subd. (c).)

Here, the court has very limited information to consider under Code of Civil Procedure section 708.510, subdivision (c). The assignee of record declares that the amount remaining due on the money judgment is \$34,631.52, including accrued interest and post-judgment costs incurred. (Jones Decl., ¶ 4.)

Considering the amount remaining due on the judgment, the amount of time that has passed since judgment was entered (nearly 20 years), and the apparent lack of other remedies available to the assignee of record given the defendant's lack of assets, the court exercises its discretion to grant the assignee of record's motion for an assignment order. The court assigns to the assignee of record the rights to defendant's fees, commissions, tips, and other payments earned from Chase California Real Estate Inc. for services rendered as an independent contractor in an amount equal to 40 percent of each payment issued by Chase California Real Estate Inc.

The assignee of record has also moved for an order restraining defendant from assigning or otherwise disposing of the right to such payments. In support of this request, the assignee of record declares that "there is a lack of documentation of [defendant's payments from Chase California Real Estate Inc.], a possibility that cash payments may not be reported and the judgment debtor may spend the payments received." (Jones Decl., ¶ 9.) Good cause appearing, the court grants the assignee of record's request. (Code Civ. Proc., § 708.520, subds. (a), (b).) The court orders that defendant shall not assign, encumber, or otherwise dispose of the right to any payment that the court has assigned herein.

TENTATIVE RULING # 1: THE MOTION IS GRANTED. THE COURT HEREBY ASSIGNS TO SACOR FINANCIAL, INC. THE RIGHTS TO DEFENDANT MIKE OWEN'S FEES, COMMISSIONS, TIPS, AND OTHER PAYMENTS EARNED FROM CHASE CALIFORNIA REAL ESTATE INC. FOR SERVICES RENDERED AS AN INDEPENDENT CONTRACTOR IN AN AMOUNT EQUAL TO 40 PERCENT OF EACH PAYMENT ISSUED BY CHASE CALIFORNIA

REAL ESTATE INC. UNTIL THE REMAINING AMOUNT DUE ON THE JUDGMENT ENTERED IN THIS CASE IS PAID IN FULL. DEFENDANT SHALL BE RESTRAINED FROM ASSIGNING OR OTHERWISE DISPOSING OF THE RIGHT TO PAYMENT THAT THE COURT HAS ASSIGNED HEREIN. UPON PAYMENT TO SACOR FINANCIAL, INC. IN THE TOTAL AMOUNT DUE UNDER THE JUDGMENT PLUS JUDGMENT INTEREST AT 10 PERCENT ANNUM, SACOR FINANCIAL, INC. SHALL FILE A SATISFACTION OF JUDGMENT AND GIVE NOTICE OF THE SAME TO DEFENDANT.

NO HEARING ON THIS MATTER WILL BE HELD (*LEWIS v. SUPERIOR COURT* (1999) 19 CAL.4TH 1232, 1247), UNLESS A NOTICE OF INTENT TO APPEAR AND REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY TELEPHONE TO THE COURT AT (530) 573-3042 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. NOTICE TO ALL PARTIES OF AN INTENT TO APPEAR MUST BE MADE BY TELEPHONE OR IN PERSON. PROOF OF SERVICE OF SAID NOTICE MUST BE FILED PRIOR TO OR AT THE HEARING.